

AutoPulse.ai

TCPA & AI Communication Compliance Guardrails

Developer Implementation Specification | September 2026

Core architecture rule

The AI must never decide whether a communication is legally permitted. Every outbound communication must pass through a deterministic Compliance Engine that returns ALLOW, HOLD, REVIEW, or BLOCK. The AI cannot override BLOCK.

Purpose. This document converts AutoPulse's TCPA compliance requirements into product and engineering guardrails for AI-driven SMS and voice communications. It is an implementation specification, not legal advice. Final rules, disclosures, state matrices, and campaign classifications should be approved by qualified TCPA/telemarketing counsel before national launch.

1. Required Communication Gate

Every outbound communication must pass this sequence before delivery:

Customer -> Dealer -> Purpose -> Channel -> Consent/Evidence -> DNC & Suppression -> State/Local Time -> Frequency -> Compliance Decision -> Delivery

The workflow or AI may request a send. Only the Compliance Engine authorizes it.

Control	Required AutoPulse behavior
Consent	Do not send covered automated marketing merely because a phone number exists. Evaluate the legally required permission/basis for that campaign and channel.
Consent evidence	Persist source, timestamp, seller/dealer, disclosure/version, phone, lead/form source and available evidence metadata.
Seller/dealer scope	Associate permission and suppression with the applicable dealership/seller; do not treat a dealer's customer record as universal AutoPulse permission.
DNC/suppression	Check applicable National DNC requirements plus dealer-specific and platform suppression before covered outbound marketing.
Revocation	Recognize explicit keywords and natural-language opt-outs. Suppress immediately in AutoPulse.
Ambiguity	If a statement may reasonably be an opt-out, stop automated marketing and route to REVIEW rather than letting the AI persuade the customer.
Hours	Determine recipient local time and applicable state restrictions before sending.
Frequency	Enforce campaign/state contact caps outside the LLM.
Historical data	DMS/DealerVault data may identify an opportunity; it does not itself establish permission to send.
AI voice	Treat AI/artificial/prerecorded voice as a separately controlled, higher-risk channel.
Audit	Log the compliance inputs, decision, reason, timestamps and delivery result for every attempted communication.
Override	No user or AI force-send function may bypass a legal/compliance BLOCK.

2. TCPA Communication Profile

Create a compliance profile per phone number / consumer / seller relationship. Recommended minimum fields:

consent_status
consent_type
consent_timestamp
consent_source
consent_text_version
consent_evidence_id
consenting_seller_id
lead_source
customer_state
customer_timezone
national_dnc_status
dealer_dnc_status
global_suppression_status
sms_allowed

```
voice_allowed
marketing_allowed
transactional_allowed
consent_revoked_at
revocation_source
last_contact_at
contact_count_24h
```

Implement a deterministic service such as:

```
can_contact(customer_id, dealer_id, channel, purpose, timestamp) -> ALLOW | HOLD | REVIEW | BLOCK
```

Important: The LLM must not create, infer, change, or override these statuses.

3. Opt-Out / Revocation Handling

AutoPulse should suppress automated marketing immediately when a valid revocation is detected, even where an outside legal deadline could permit additional processing time.

Explicit triggers: STOP, END, CANCEL, UNSUBSCRIBE, QUIT and equivalent commands supported by the messaging provider.

Natural-language triggers: examples include 'don't text me,' 'don't call me,' 'leave me alone,' 'remove my number,' 'take me off your list,' and 'no more messages.'

Do not automatically equate a sales objection with revocation. 'I'm not interested' can be an objection rather than a request to cease communications. If context makes revocation ambiguous, use REVIEW and stop automated marketing while unresolved.

A permitted opt-out confirmation, where used, must be non-marketing and limited to confirming the revocation. Counsel should approve the exact implementation.

4. Inbound vs. Outbound Classification

AutoPulse must classify communications before compliance evaluation. Do not let the AI blur these categories:

Class	Example	System treatment
Consumer-initiated lead response	Customer submits an inquiry about a vehicle	Store lead source, request timestamp, dealer, channel and available consent/evidence; evaluate response rules.
Outbound marketing	Dealer initiates trade/equity, sales or promotional outreach	Run full outbound campaign compliance checks before enrollment and before each send.
Service/transactional	Appointment confirmation or operational update	Classify purpose carefully; do not add promotional content that changes the nature of the message.
Historical-data campaign	Service interval/equity opportunity identified from DMS/DealerVault	Historical data identifies opportunity only; Compliance Engine independently determines contactability.

5. DMS / DealerVault Guardrail

Required rule: DMS or DealerVault presence must never automatically set TCPA_PERMISSION = YES.

Correct flow:

DealerVault/DMS identifies opportunity -> Compliance Engine evaluates seller, purpose, channel, consent/evidence, DNC/suppression, jurisdiction, time and frequency -> eligible record enters AI campaign -> AI personalizes permitted communication.

This is especially important for AutoPulse service-interval reminders and other campaigns generated from historical customer data.

6. Lead-Provider Evidence

Do not rely solely on a third-party boolean such as consent=true. Where evidence is required, the ingestion layer should preserve an auditable consent object.

```
lead_id
consumer_id
phone
lead_source
seller/dealer
consent_status/type
consent_timestamp
consent_disclosure + version
source URL/form where available
consent_evidence_id
permitted_channel(s)
```

If required evidence is missing or cannot be validated for the campaign, set CONSENT_REVIEW_REQUIRED and prevent automated marketing until resolved.

7. Time-of-Day & State Rules

Do not hard-code only a single federal communication window. AutoPulse is intended for national use, and state telemarketing/SMS rules can be more restrictive or define covered communications differently.

Recommended implementation: maintain a counsel-approved, versioned jurisdiction rules table. Determine the consumer's applicable jurisdiction and local time before every covered outbound attempt. If the current time is outside the permitted window, return HOLD with the next eligible send time.

Do not allow the AI to calculate or override the legal window itself.

8. Frequency Controls

Business cadence is subordinate to compliance. AutoPulse may schedule Day 1 / Day 2-6 follow-up, but the Compliance Engine must evaluate frequency limits immediately before each send.

```
WORKFLOW REQUESTS SEND -> COMPLIANCE ENGINE -> ALLOW/HOLD/REVIEW/BLOCK -> DELIVERY
```

Store attempts and successful sends by consumer, seller, channel, campaign/purpose, rolling time window and subject matter where required by the applicable rule.

9. AI Voice

Treat AI-generated/artificial/prerecorded outbound voice as a separately controlled channel. The FCC has stated that AI-generated voices fall within TCPA artificial/prerecorded voice restrictions. Do not reuse SMS permission logic as a blanket authorization for AI voice.

Recommended launch posture: keep automated outbound voice disabled until counsel approves the applicable consent, identification/disclosure, opt-out, state-law and recordkeeping implementation.

10. Required AI System Guardrail

Add the following concept to the system-level policy enforced around the model:

The AI may never state, infer, or modify that a consumer consented to communications, has an established business relationship, is eligible for contact, is not on a suppression list, or may legally be contacted. Communication eligibility is determined exclusively by the AutoPulse Compliance Engine. The AI cannot override HOLD, REVIEW, or BLOCK.

11. Compliance Decision & Audit Record

Decision	Meaning
ALLOW	All required checks pass; delivery layer may send.
HOLD	Potentially permissible later; queue until the next compliant window/condition.
REVIEW	Evidence or classification is ambiguous; no automated marketing send while unresolved.
BLOCK	Communication is prohibited under current system rules; AI and users cannot force-send.

Recommended audit event:

```
timestamp
dealer_id / seller_id
customer_id / phone hash or secured identifier
channel
purpose / campaign
lead_source
consent_evidence_id + disclosure version
jurisdiction + local_time
DNC/suppression results
frequency check
decision
decision reason / rule version
message/template ID
delivery result
opt-out event, if any
```

12. Developer Acceptance Checklist

- AI cannot send without a Compliance Engine decision.
- BLOCK cannot be overridden by the AI or ordinary dealer users.
- HOLD messages cannot release before the stored eligible condition/time.
- REVIEW stops automated marketing until an authorized resolution.
- Opt-outs update suppression immediately and prevent queued marketing from releasing.
- Deleted/reimported customer records do not erase suppression history.
- DealerVault/DMS import never creates consent automatically.
- Every outbound attempt has dealer/seller, purpose and channel classification.
- Jurisdiction/time check occurs at send time, not only campaign enrollment.

- Frequency is checked again at send time.
- Consent evidence/disclosure versions are immutable/auditable.
- Lead-provider consent metadata is preserved rather than reduced to a boolean.
- AI voice is separately permissioned and can be globally disabled.
- Rule tables are versioned so counsel-approved state changes can be deployed without rewriting AI prompts.
- Audit logs show why each attempted communication was ALLOW/HOLD/REVIEW/BLOCK.

13. Legal Review Items Before National Launch

Have TCPA/telemarketing counsel approve at minimum: consent/disclosure language by campaign and channel; DNC procedures; revocation handling; transactional vs. marketing classifications; established-business-relationship use cases; lead-provider evidence requirements; AI voice; service-interval campaigns; state-specific calling/texting windows and frequency restrictions; record retention; seller/dealer allocation of responsibility; and any dealer-facing override/permission model.

The state-law matrix should be maintained as versioned configuration owned by compliance/legal, not embedded in AI prompts.

14. Key Authorities for Counsel / Engineering Reference

FCC, FCC 24-24 - revocation of consent / opt-out rules and confirmation-message framework.

FCC, FCC 24-17 - declaratory ruling addressing AI-generated voices under artificial/prerecorded voice provisions.

FTC - Complying with the Telemarketing Sales Rule (DNC, calling times and established-business-relationship guidance).

FCC public materials regarding the Eleventh Circuit decision vacating the 2023 one-to-one consent rule.

State statutes/rules must also be evaluated. Examples discussed in the product review included Florida and Oklahoma restrictions; counsel should supply the production 50-state matrix.

Implementation principle: AI decides the next best customer action. The Compliance Engine decides whether AutoPulse is permitted to execute the communication.